

**IN THE COURT OF SH. PRANAV JOSHI, LD. ACJM, PATIALA HOUSE
COURT, NEW DELHI**

Misc. Application No. _____ of 2025

In

FIR No. 538/2024

IN THE MATTER OF:

State (Arun Kumar Jain)

....Complainant

Versus

Unknown Persons

.... Accused

FIR No. 538/2024 dated 27.11.2024

registered for offence U/s 318,319,61(2)

BNS,2023.

PS.: Special Cell, IFSO

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Place: New Delhi

Dated:

Applicant
(Through Counsel)

Through

MUKUL
Advocate for the Applicant
Ph. 7011865252
Office-E-303, Greater Kailash-2,
New Delhi

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BNS,2023.

PS.: Special Cell, IFSO.

**APPLICATION SEEKING MODIFICATION OF ORDER DATED
05.12.2024 PASSED BY THE HON'BLE COURT TO THE EXTENT THAT
THE BANK ACCOUNT MARKED PUT ON HOLD VIDE
ACKNOWLEDGE NUMBERS NO. 30811240054149 DATED 21.11.2024,
30811240054434 DATED 22.11.2024 AND 208011240094743 DATED
23.11.2024 BE MENTIONED/ REFLECTED IN THE ORDER DATED
05.12.2024 FOR EFFECTIVE COMPLIANCE OF THE ORDER PASSED
BY THE HON'BLE COURT WHEREBY THE HON'BLE COURT WAS
PLEASED TO ALLOW THE APPLICATION SEEKING RELEASE OF
THE CHEATED AMOUNT.**

Most Respectfully sheweth:

1. That the present application is being preferred by the present Applicant/ Complainant seeking modification of order dated 05.12.2024 passed by the Hon'ble Court to the extent that the bank account marked put on hold vide acknowledge numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 be mentioned/ reflected in the order dated 05.12.2024 for effective compliance of the order passed by the Hon'ble Court whereby the Hon'ble Court was pleased to allow the application seeking release of the cheated amount

Copy of the order dated 05.12.2024 passed by the Hon'ble Court is annexed herewith and marked as **Annexure-1**.

2. That Applicant/Complainant was induced by the accused persons to invest in the share market on the pretext of earning exorbitant profits on WhatsApp and to make investments into the stock market through their platform. Information regarding investments were shared with the complainant through two WhatsApp groups namely (1) Bajaj Finserv-Bajaj SST-XAI INTERNATIONAL and (2) Saif India stock-VIP 205. Believing the representations made by the accused persons, the complainant invested a sum of 18,86,20,000/- from his two bank accounts (1) RBL Bank- Acc. No. 309811041129- and (2) AXIS Bank - Acc. No.5719609227- to 26 different bank accounts and later on, the complainant was denied access to such trading account.

3. That on the basis of the written complaint submitted by the Applicant, FIR No. 538/2024 was registered at PS. Cyber Cell, IFSO against unknown accused persons and the investigation in the present case is underway.
4. That subsequent to the registration of the FIR, NCRP Portal had marked lien with respect to the bank accounts in which the cheated amount was transferred by the complainant on the basis of the inducement given by the accused persons.
5. That the lien was marked vide acknowledgment numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 and the details of the same are also available on the National Cyber Crime Reporting Portal also.

Copy of List of bank accounts in which the money was transferred by the complainant and marked put on hold vide numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 is annexed herewith and marked as **Annexure-2.**
6. That since the Applicant is the lawful owner and claimant to the cheated amount, the applicant filed an application seeking the release of the cheated amount.
7. That the said application was marked by the Ld. CJM before this Hon'ble Court and vide order dated 05.12.2024, the Hon'ble Court was pleased to direct the above-mentioned banks to release the amount remaining in the

respective bank accounts on which lien has been created vide the acknowledgment numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 in favour of the complainant in his RBL bank account since there were several banks accounts in which cheated amount had been transferred and marked debit freeze vide the above mentioned acknowledgement numbers, the details of the individual bank accounts were not mentioned in the order.

8. That it is respectfully submitted that the despite clear directions of the Hon'ble Court directing the banks to release the cheated amount to the complainant from the respective bank accounts in respect of which debit freeze was marked vide acknowledgement numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024, the banks are not complying which same without giving any valid and cogent explanation and some banks are also trying to unnecessarily delay the compliance of the orders passed by the Hon'ble Court.
9. That the complainant has filed an application dated 12.01.2025 seeking compliance of the order dated 05.12.2024 passed by the Hon'ble Court and the same is pending consideration before the Hon'ble Court on 07.02.2025.
10. It is respectfully submitted that some of the banks are not complying with order passed by the Hon'ble Court stating the details of the bank account

from which the amount is to be released to the Applicant/ complainant is not mentioned in the order of the Hon'ble Court, despite the required information being available with the banks as all the banks are part of the National Cyber Crime Reporting Portal.

11. Further, some of the banks, particularly Bandhan Bank and Indusind Bank are not providing any satisfactory response to the queries raised by the complainant with regards to status of the funds in the said bank account and why the orders of the Hon'ble Court are not being complied with.
12. Further, it is pertinent to mention out of the cheated amount, Rs.1,00,000/- was received in the bank account of M/s A ONE PRINTERS bearing a/c no. 20100031662912 with Bandhan Bank. The bank, for the reasons best known to them, have not yet complied with order passed by the Hon'ble Court and released the cheated amount to the complainant/applicant. However, from the same bank account, the bank has released money to other third party with similar claim/case as that of the applicant after passing of the order dated 05.12.2024 by the Hon'ble Court.
13. Therefore, by way of the present application, the present applicant prays that the Hon'ble court may be pleased to modify the order dated 05.12.2024 to the **extent that the bank accounts marked put on hold vide acknowledgement numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 as annexed as Annexure no. 2 of the present application be**

mentioned in the order directing release of the cheated amount itself for effective and smooth compliance of the orders passed by the Hon'ble Court.

14. That the present application has been filed in the most *bona fide* manner and in the interest of justice.

PRAYER

It is therefore most respectfully prayed that the Hon'ble Court may be pleased to:

A. Pass necessary order and directions thereby modifying the order dated 05.12.2024 passed by the Hon'ble Court to the extent that the bank account marked put on hold vide acknowledge numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 be mentioned/ reflected in the order dated 05.12.2024 for effective compliance.

AND

B. Pass any other appropriate orders and directions as the Hon'ble Court deems it fit and proper in light of the facts and circumstances of the case.

It is prayed accordingly.

Place: New Delhi
Dated:

Applicant
(Through Counsel)

Through

MUKUL
Advocate for the Applicant
Ph. 7011865252
Office-E-303, Greater Kailash-2,
New Delhi.

Additional Chief Judicial Magistrate-01
02, Ground Floor, Main Building
Patiala House Courts.

Complaint No. 330/2024
State (Arun Kumar Jain) v. Unknown Persons
PS Special Cell

05.12.2024

The present application marked to the undersigned by Ld. CJM, PHC, NDD.

Present: Sh Lalan Kumar APP for the State.
IO Inspector Naresh in person.
Complainant alongwith Ld. Counsel Sh. Deepak Tyagi.

An application seeking release of the cheated amount on which lien has been created vide acknowledgment No. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 20811240094743 dated 23.11.2024 through NCRP Portal.

IO submits that the money which is transferred from the account of the complainant, was transferred to different bank accounts. The money trail consists of hundreds of bank accounts but they can be identified through the acknowledgement generated NCRP portal. He submits that the money lying in the said accounts may be released to the complainant after giving directions to the concerned banks to release the same as per the acknowledgment No. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 20811240094743 dated 23.11.2024.

Submissions heard.

The concerned banks are directed to release the amount remaining in the respective accounts on which lien has

been created vide acknowledgment No. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 20811240094743 dated 23.11.2024 through NCRP portal in favour of the complainant in his RBL bank account No. 309811041129.

IO is also directed to communicate this order to the respective banks for the release of the amount to the complainant as aforesaid.

Application stands disposed of.

Copy of the order be given dasti to complainant as well as to the IO.



(*Pranav Joshi*)
ACJM-01/PHC/ND
05.12.2024
Cohy Dast

**DETAILS OF BANK ACCOUNT PUT UNDER DEBIT FREEZE IN THE
RELATION TO COMPLAINT FILED BY SH. ARUN KUMAR JAIN**

<u>HDFC BANK</u>			
Sr. No.	Account No.	Amount put on hold	Acknowledgement
1.	50100645178998	13,907.30	30811240054149
2.	50200094747679	395.00	30811240054149
3.	50100706803880	25,000.00	30811240054149
4.	50200068031854	9,000.00	30811240054149
5.	05211050005063	20,000.00	30811240054149
6.	50100706803880	25,000.00	30811240054149
7.	50100272572757	71,600.00	30811240054149
8.	50200068031854	9,000.00	30811240054149
9.	50100332958556	29,021.90	30811240054149
10.	50100669226042	10,180.60	30811240054149
11.	50100505752931	51,500.00	30811240054149
12.	50100669226042	10,000.00	30811240054149
13.	17151570001013	2,899.00	30811240054149
14.	50200097672443	7,000.00	30811240054149
15.	50100625176631	1,200.00	30811240054149
16.	50100487184490	200.00	30811240054149
17.	50100421902946	200.00	30811240054149
18.	05230310001236	10,000.00	30811240054149
19.	50200098979350	68,000.00	30811240054149
20.	50100338186521	50.00	30811240054149
21.	50100240286841	4,100.00	30811240054434
22.	50100491944511	500.00	30811240054434
<u>STATE BANK OF INDIA</u>			
23.	41595409236	65,000.00	30811240054149
24.	32707216466	1,00,000.00	30811240054149
25.	00000062108887578	25,000.00	30811240054149
26.	33839293045	22,415.00	30811240054149
27.	35612596474	1,900.00	30811240054149
28.	00000020029964395	965.00	30811240054149
29.	67311305924	10,000.00	30811240054149

30.	43369922766	1,20,000.00	30811240054149
31.	00000041637266441	7,800.00	30811240054149
32.	65275665583	50,000.00	30811240054149
33.	33363485170	100.00	30811240054149
34.	00000036001192706	3,300.00	30811240054149
35.	00000030842414091	1,140.00	30811240054149
36.	00000010742599492	221.00	30811240054149
37.	32853957370	2,100.00	30811240054149
38.	00000042474454689	51,000.00	30811240054149
39.	00000043430564048	1,300.00	30811240054149
40.	00000061177955603	1,935.00	30811240054149
41.	00000042495490383	639.00	30811240054149
42.	41424687020	500.00	30811240054149
43.	00000020117782769	1,500.00	30811240054149
44.	20419538514	25,000.00	30811240054149
45.	30355247805	10,000.00	30811240054149
46.	00000020190574534	500.00	30811240054149
47.	00000036562469385	6,000.00	30811240054149
48.	00000043293213232	50,000.00	30811240054149
49.	00000033385975383	1,214.00	30811240054149
50.	39486225693	3,000.00	30811240054149
51.	00000041058688903	15.00	30811240054149
52.	30175878743	22,253.00	30811240054434
53.	00000032429594148	15,683.00	30811240054434
54.	32192773948	8,655.00	30811240054434
<u>AXIS BANK</u>			
55.	92102001910144	4,180.00	30811240054149
56.	924010051741244	50,000.00	30811240054149
57.	923020061125360	4,900.00	30811240054149
<u>BANK OF BARODA (INCLUDING VIJAYA BANK AND DENA BANK)</u>			
58.	77780100008393	107.00	30811240054149
59.	57210100009344	7.00	30811240054149
60.	64620100017840	1,868.00	30811240054149
61.	64620100002692	6,575.00	30811240054149
62.	57480100000290	732.00	30811240054149

63.	45900200000297	2,603.00	30811240054149
64.	15868100014341	13.00	30811240054149
65.	36380100014480	6,841.00	30811240054149
66.	56648100034599	11,000.00	30811240054149
67.	36720100015095	111.00	30811240054434
68.	49278100004871	192.00	30811240054434
69.	40790100013429	304.00	30811240054434
<u>CANARA BANK (INCLUDING SYNDICATE BANK)</u>			
70.	To be clarified	-do-	-do-
71.	-do-	-do-	-do-
72.	-do-	-do-	-do-
73.	-do-	-do-	-do-
74.	-do-	-do-	-do-
75.	-do-	-do-	-do-
<u>CENTRAL BANK OF INDIA</u>			
76.	00000005683595902	40,000.00	30811240054149
77.	3847015809	3,000.00	30811240054149
78.	1869801369	1,000.00	30811240054149
79.	00000005284270227	1,854.78	30811240054149
80.	00000005184196405	192.95	30811240054149
81.	5370768847	547.00	30811240054149
<u>ICICI BANK</u>			
82.	683501518733	41,792.00	30811240054149
83.	136605000855	10,000.00	30811240054149
84.	022501507454	15,000.00	30811240054149
85.	147201501788	15,000.00	30811240054149
86.	136605000855	4,297.00	30811240054149
87.	060405003054	50,000.00	30811240054149
88.	147205005323	9,500.00	30811240054149
89.	656001700740	1,557.00	30811240054149
90.	324301502147	5,000.00	30811240054149
91.	015405005477	50,000.00	20811240094743
<u>BANK OF INDIA</u>			
92.	900310101003574	1,64,842.00	30811240054149
93.	426010110010556	90,063.00	30811240054149
94.	464810110012986	100.00	30811240054149

95.	729520110000359	600.00	30811240054149
96.	464810110013208	1,286.00	30811240054149
97.	912010110000545	482.00	30811240054149
98.	220118210001337	672.00	30811240054149
BANK OF MAHARSHTRA			
99.	60503950840	1,000.00	30811240054149
FEDERAL BANK			
100.	18890100079478	4,272.00	30811240054149
101.	14274100036156	41,354.00	30811240054149
102.	19860100076013	46,779.00	30811240054149
103.	19860100071733	45,703.00	30811240054149
IDBI BANK			
104.	1008104000146760	50,000.00	30811240054149
105.	1011104000232852	1,01,200.00	30811240054149
106.	1963104000102544	10,000.00	30811240054149
107.	1875104000315043	29,434.00	30811240054434
INDIAN BANK (INCLUDING ALLAHABAD BANK)			
108.	6149217138	39,429.00	30811240054149
109.	6540610564	1,00,000.00	30811240054149
110.	7873580655	1.00	30811240054149
111.	7868082454	2,736.00	30811240054149
112.	610045620	2,585.00	30811240054149
113.	7890306840	1,013.00	30811240054149
JAMMU AND KASHMIR BANK			
114.	0294040110000018	6,00,000.00	30811240054149
115.	0294040100006204	6,00,000.00	30811240054149
JANA SMALL FINANCE BANK			
116.	4754010037778799	61,143.67	30811240054149
117.	4804020001145896	10,000.00	30811240054149
KARUR VYSYA BANK			
118.	1235177000010072	20,000.00	
KOTAK MAHINDER BANK			
119.	4045718371	13,500.00	30811240054149
120.	0846969554	10,000.00	30811240054149
PUNJAB & SINDH BANK			

121.	08331000014181	50,000.00	30811240054149
RATNAKAR BANK LIMITED			
122.	409002185553	6,422.69	30811240054149
123.	309027163656	1,619.00	30811240054149
124.	409002332513	2,000.00	30811240054149
125.	409000855155	10,000.00	30811240054149
SARASWAT CO-OPERATIVE BANK LTD			
126.	610000000035592	17,750.00	30811240054149
FEDERAL BANK			
127.	55550124725837	10,000.00	30811240054434
YES BANK			
128.	110089400000280	10,00,000.00	20811240094743
SOUTH INDIAN BANK			
129.	0797053000002911	24,000.00	30811240054434
UNION BANK OF INDIA (INCLUDING ANDHRA BANK AND CORPORATION BANK)			
130.	531102010017348	4,994.00	30811240054434
BANDHAN BANK			
131.	20100031662912	1,00,000	20811240094743
132.	20100031470658	100,000	20811240094743
133.	20100031694042	15,00,000	30811240054434
IDFC FIRST BANK			
134.	10196756626	4,000,000	30811240054434
UCO BANK			
135.	04790210003688	29,00,000	30811240054149
INDUSIND BANK			
136.	250022062024	1,30,00,000	30811240054149